

provide the Court with a certified copy of the administrative record before a hearing can be had on the petition. (Contra Costa v. Social Welfare Board (1962) 199 Cal.App.2d 468, 471 [disapproved on other grounds in Frink v. Prod (1982) 31 Cal.3d 166]; Leal v. Gourley (2002) 100 Cal.App.4th 963, 970.)

Without the administrative record, a court cannot proceed in compliance with CCP §1094.5. (Buckhart v. San Francisco Residential Rent Stabilization & Arbitration Board (1988) 197 Cal.App.3d 1032, 1036; Elizabeth D. v. Zolin (1993) 21 Cal.App.4th 347, 354.) Based upon the lack of a certified or complete copy of the administrative record of the DMV hearing for the suspension of Plaintiff's license, the petition must be denied or the hearing continued.

The Court notes that it does not appear that the DMV was validly served with the Petition for Writ of Mandamus. Under California Code of Civil Procedure Section 1096 a writ of mandate must be served in the same manner as a summons in a civil action. This means the Plaintiff's "Proof of Service by First Class Mail," filed February 20, 2026, and purporting to show that the Petitioner's Petition for Writ of Administrative Mandamus, Request for Administrative Record, and Notice of Motion for Writ of Administrative Mandamus was mailed to the DMV did not constitute valid service. In addition, Petitioner has not shown compliance with Vehicle Code Section 24.5 for service of civil process against the DMV.

Plaintiff filed a document entitled "Request for Administrative Record" on February 18, 2026, which appears to be addressed to the DMV, but the file contains no proof that this request was properly served upon the DMV.

PASTERULESHERE

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C23-00634

CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.

***HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH COURT ORDER FOR PRODUCTION/INSPECTION OF DEFENDANTS' ELECTRONICALLY STORED INFORMATION**

FILED BY: DOE, JANE

TENTATIVE RULING:

The Plaintiff's motion to compel compliance is **denied**. The court finds that the Defendants have acted with substantial justification, as the delay resulted from medical leave of the attorney primarily responsible for ESI coordination, and the inherent challenges of coordinating the searches in this particular case. The court also finds that the Defendants have never refused production and have been actively implementing the protocol.

The court denies the Plaintiff's requests for sanctions. The court sets a compliance deadline of 30 days from May 29, 2026.

15. 9:01 AM CASE NUMBER: C23-02656
CASE NAME: MARIA ANGUIANO VS. JOHN BALQUIST
*HEARING ON MOTION FOR DISCOVERY TERMINATING SANCTIONS AGAINST PLAINTIFF
ALEJANDRA CHAVEZ ORTIZ
FILED BY: BETHEL ISLAND ESTATES MHC, LLC
TENTATIVE RULING:

See tentative ruling in Line 3. This line item is duplicative of the motion in Line 3.

16. 9:01 AM CASE NUMBER: C23-03011
CASE NAME: ANGEL MONTOYA VS. CITY OF RICHMOND
*HEARING ON MOTION FOR DISCOVERY COMPEL THE DEPOSITION OF MAYOR EDUARDO MARTINEZ
FILED BY: MONTOYA, ANGEL
TENTATIVE RULING:

The motion to compel the deposition of Mayor Eduardo Martinez is denied. Plaintiffs have failed to show that the Mayor has direct personal factual information on material issues in this case and that the information cannot be obtained from any other source.

Plaintiff is the former Fire Chief for the City of Richmond for approximately two years between November 2021 and October 2023. He brings a wrongful termination case against the City of Richmond.

Defendant has shown and Plaintiff does not contest that Plaintiff's employment